

C. Discussion

Defendants' demurrer provides little analysis, but argues each and every cause of action is based on inadmissible mediation writings or communications. Plaintiff counters that Evidence Code § 1123(d) provides grounds to allow use of the Interim Settlement Agreement. That provision states that a "written settlement agreement prepared in the course of, or pursuant to, a mediation, is not made inadmissible, or protected from disclosure, by provisions of this chapter if the agreement is signed by the settling parties and [...] [t]he agreement is used to show fraud, duress, or illegality that is relevant to an issue in dispute." This argument has merit. Further, even if portions of the FAC might be subject to mediation confidentiality, each cause of action appears to be based on more than just what occurred at mediation. Because a demurrer may not be sustained to part of a cause of action (see *Kong v. City of Hawaiian Gardens Redevelopment Agency* (2002) 108 Cal.App.4th 1028, 1047), the demurrer is overruled.

6. 9:00 AM CASE NUMBER: C25-03818
CASE NAME: MARIO DE LEON VS. PACIFIC CLIMBING SOCIETY, A BUSINESS ENTITY
COMPLAINT
FILED BY: PACIFIC CLIMBING SOCIETY, A BUSINESS ENTITY
TENTATIVE RULING:

Defendant Pacific Climbing Society ("Defendant") filed a Demurrer to plaintiff AMERICA A. DE LEON's and MARIO DE LEON's ("Plaintiffs") Complaint on April 8, 2026 (the "Demurrer"). The Demurrer was set for hearing on August 31, 2026.

Background and Analysis

No opposition was filed. However, Plaintiffs filed a First Amended Complaint on August 18, 2026.

A party may amend its pleading once without leave of the court at any time before the answer, demurrer, or motion to strike is filed, or **after a demurrer or motion to strike is filed but before the demurrer or motion to strike is heard if the amended pleading is filed and served no later than the date for filing an opposition to the demurrer or motion to strike.** Code Civ. Proc. § 472(a).

When the plaintiff files an amended complaint in response to a defendant's demurrer before the hearing on the demurrer, that hearing should be taken off calendar because the amended complaint supersedes the complaint to which the demurrer was directed. *People ex rel. Strathmann v. Acacia Research Corp.* (2012) 210 Cal.App.4th 487, 506; see CJER, *California Judges Benchbook: Civil Proceedings—Before Trial* (2025) ("CJER Civ. Pro.—Before Trial"), § 12.11.

Accordingly, the Court orders the Demurrer off-calendar as moot in light of the amended complaint.

Disposition

The Court finds and orders as follows:

1. The Demurrer is ordered **OFF-CALENDAR** as moot.
2. The Court shall issue the order after hearing.

7. 9:00 AM CASE NUMBER: C26-00107
CASE NAME: JANICE BUCHANAN VS. ULTRA406 ENTERPRISES, INC.
STRIKE DEFENDANT ULTRA406 ENTERPRISES, INC.'S OPPOSITION TO COMPLAINT
FILED BY: BUCHANAN, JANICE
TENTATIVE RULING:

Plaintiff Janice Buchanan ("Plaintiff") filed a Motion to Strike on April 10, 2026 (the "Motion to Strike"). The motion seeks to strike the pleading entitled "Defendants' Opposition to Complaint for Damages and Injunctive Relief" (the "Responsive Pleading") filed January 28, 2026 by Justin Steffes on behalf of the named corporate entity defendant Ultra406 Enterprises, Inc. ("Ultra406"). The Motion to Strike was set for hearing on August 31, 2026. No opposition has been filed to the Demurrer or Motion to Strike.

Background

Plaintiff initiated this action by the Complaint for Damages and Injunctive Relief filed January 12, 2026. There are two named defendants—Justin Steffes, individually, and Ultra406.

The Court, in connection with prior case management proceedings, issued an OSC for defendants to show cause, if any they had, why the corporate defendant Ultra406's purported Responsive Pleading should not be stricken as to Ultra406 for failure to appear through and be represented by an attorney. See Order entered June 2, 2026.

The Court ultimately struck the Responsive Pleading as to Ultra406. See Order entered July 22, 2026. As part of that order, this motion was withdrawn and the hearing vacated.

Disposition

The Court finds and orders as follows:

1. The Motion to Strike has been **WITHDRAWN** and the hearing is **VACATED**.

8. 9:00 AM CASE NUMBER: C26-00157
CASE NAME: RONDA FRANK VS. THE LAW FIRM OF J. HECTOR MORENO, JR. & ASSOCIATES
TO TRANSFER VENUE
FILED BY: THE LAW FIRM OF J. HECTOR MORENO, JR. & ASSOCIATES
TENTATIVE RULING:

The unopposed Motion to Transfer Venue is **GRANTED**. The request for sanctions is **DENIED**. Moving party to prepare and submit a proposed order after hearing.

9. 9:00 AM CASE NUMBER: C26-00599
CASE NAME: DANIEL ROBERSON VS. MERISSA BENTON
DISQUALIFY OPPOSING COUNSEL (MICHELLE WOODRUFF)
FILED BY: ROBERSON, DANIEL JACOB
TENTATIVE RULING:

Before the Court is Plaintiff Daniel Roberson's Motion to Disqualify Attorney Michelle Woodruff ("Motion").